

Court No. - 1

Case :- WRIT - C No. - 56014 of 2017

Petitioner :- Smt. Sai Kiran Khanna

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vijay Singh Gour

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

The grievance of the petitioner is that the respondent no. 5 failed to appreciate the actual grievance of the petitioner which was to be redressed in light of the directions earlier given by this Court in the earlier petition for writ preferred by her. It is asserted that as per Clause 4.6(e) of the Electricity Supply Code, 2005 low tension load up to 50KW is required to be developed by the licensee only, for which no supervision charges shall be applicable. It is further submitted that the respondent electricity company at its own reiterated this fact under the communications dated September, 2004 and 9th November, 2016.

Learned counsel appearing on behalf of the electricity company while contesting the issue on merits states that the petitioner as a matter of fact accepted to bear the expenses and further that she installed a Transformer of a capacity pertaining to 160 KVA. According to the learned counsel, if the the petitioner removes the transformer of 160 KVA and installs a transformer of 100 KVA, that is allowed under estimate serial No. 134/2016-17, then the case of the petitioner will be considered afresh in accordance with law. Learned counsel appearing on behalf of the petitioner submits that the petitioner already removed the transformer aforesaid and if not removed then will remove the same at the earliest.

In view of the aforesaid submissions of the learned counsel for the parties, we deem it appropriate to dispose of the petition for writ by directing the Executive Engineer, respondent no. 5 to get the site inspected and if the transformer pertaining to 160 KVA has already been removed then to consider the case of the petitioner afresh in accordance with law.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 24.11.2017

SK Srivastava

(Ashok Kumar,J.) (Govind Mathur,J.)